

IN THE HIGH COURT OF JUDICATURE AT PATNA
Civil Writ Jurisdiction Case No.14284 of 2016

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Rahul Kumar son of late Sachidanad Yadav resident of Village-Kali Prasad
Tola Madubani Purnea. P.S.- K. Hat in the district of Purnea

... .. Petitioner/s

Versus

1. The State Of Bihar
2. The Chief Secretary, Govt. of Bihar, Patna
3. The District Magistrate, purnia
4. The Collector Cum Chairman, District Compassionate Appointment
Committee, Purnea
5. The Deputy Collector, Establishment, Purnea
6. The Sub- Divisional Officer, Sadar, Purnea

... .. Respondent/s

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Appearance :

For the Petitioner/s	:	Mr. Rajesh Kumar, Advocate Mr. Vijay Kumar, Advocate
For the Respondent/s	:	Mr. Suman Kumar Jha, A.C. to A.A.G.-3

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CORAM: HONOURABLE MR. JUSTICE RITESH KUMAR
ORAL ORDER

2 10-08-2026 Heard the learned counsel for the petitioner and the

learned counsel appearing on behalf of the State.

2. The present writ petition has been filed for quashing the order contained in Memo No. 824 dated 02.06.2010, whereby the application of the petitioner for appointment on compassionate ground was rejected only on the ground that one of the brothers of the petitioner is in Government service. Further prayer in the writ petition is to appoint the petitioner on compassionate ground and to pay regular salary to him for maintaining the dependants of the



deceased employee.

3. The learned counsel for the petitioner submits that the late father of the petitioner was working as a Class IV employee in the Sub-Divisional Office, Sadar, Purnea and died in harness on 19.12.2009, leaving behind his wife, two sons and three daughters, including the petitioner. After his death, the petitioner, having the requisite qualification, submitted his application before the competent authority, along with the no-objection given by his brothers and sisters. The District Compassionate Appointment Committee, in its meeting dated 14.05.2010, which was held under the Chairmanship of the District Magistrate-cum-Chairman, District Compassionate Appointment Committee, Purnea, rejected the claim of the petitioner for appointment on compassionate ground by holding that one of the brothers of the petitioner is in Government service and therefore, in view of the circular of the State Government, the petitioner is not entitled to be appointed on compassionate ground. The mother of the petitioner submitted a representation before the Commissioner, Purnea Division, Purnea on 10.04.2013 for appointment of the petitioner on compassionate ground however no decision was taken on the same, therefore, the petitioner filed the present writ petition in



the year 2016.

4. The learned counsel for the petitioner submits that the rejection of the claim of the petitioner for compassionate appointment has been made on erroneous consideration, since as per the circular of the State Government contained in Letter No. 4250 dated 01.07.2008, there is no bar in the appointment of the second dependent son of the deceased employee on compassionate ground. He submits that in view of the letter dated 01.07.2008, the case of the petitioner deserves consideration. He further submits that subsequently, vide Letter No. 1525 dated 24.03.2009, issued under the signature of the Deputy Secretary to the Government, Department of Personnel and Administrative Reforms, Government of Bihar, Patna, guidelines with regard to appointment on compassionate ground were issued and from perusal thereof, it would transpire that if one son of the deceased Government employee is in Government service, another dependent of the deceased employee can be appointed on compassionate ground. He further submits that in similar circumstances, this Hon'ble Court, vide order dated 26.04.2011 passed in C.W.J.C. No. 9077 of 2008 (Amit Kumar vs. The State of Bihar & Ors.), issued a direction to the Collector, East Champaran at Motihari, to



consider the case of the petitioner afresh, if not already considered and to take a final decision strictly in accordance with law and in view of the observations made in the order dated 26.04.2011. The learned counsel for the petitioner would submit that in view of the order passed by this Hon'ble Court as well as the circular of the State Government, the petitioner is entitled for appointment on compassionate ground.

5. Per contra, the learned counsel appearing on behalf of the State would submit that the claim of the petitioner for compassionate appointment was rejected on 02.06.2010 and the petitioner has filed the present writ petition after a delay of almost six years and therefore, the writ petition is fit to be dismissed on account of delay and laches.

6. Having considered the rival submissions and after going through the records, it appears that the claim of the petitioner for being appointed on compassionate ground was rejected on 02.06.2010. The petitioner slept over his right and all of a sudden filed the present writ petition in the year 2016. The law in this regard has already been settled by the Hon'ble Full Bench of this Court in the case of **Niraj Kumar Mallick vs. The State of Bihar & Ors.; 2018 (2) PLJR 951**, wherein the Hon'ble Full Bench in paragraph nos. 45, 47, 48 and 49 has



held as follows:

*45. A perusal of Clause (d) of Annexure-A to the counter affidavit of respondent no.2 in CWJC No. 17143 of 2016 would show that the clarification offered by the General Administration Department clearly states that where any of the dependents of a deceased Government servant is “gainfully employed” then irrespective of the fact whether he lives together or separate from other dependents, the benefit of compassionate appointment would not be available to any other dependents of the deceased Government servant. I am of the considered opinion that the clarification offered by the Department being a part of the policy decision governing the scheme of appointment on compassionate ground is based on judicial pronouncement of this Court in the case of **Vishal Kumar** (supra) and it is fully in consonance with the object of compassionate appointment, it is also in tune with the views expressed by Hon’ble Supreme Court in a catena of decisions some of them I have referred hereinabove. It is also reasonable one and passes the test of Articles 14 and 16 of the Constitution of India. The clarification vide Clause (d) of Annexure- “A” to the counter affidavit of respondent no.2 cannot be found fault with on the touchstone of Articles 14 and 16 of the Constitution of India.*



47. So far as the clarification that “gainfully employed” means such employment from which the employed dependent of the deceased government servant may provide sustenance or can maintain other dependents is concerned, it has to be looked at ‘objectively’ and not ‘subjectively’. It is not for the authority considering the application for compassionate appointment to find out as to whether the dependent in employment is willing to take care of other dependents or not. It would not be his concern that the gainfully employed sibling is actually providing sustenance to the other dependents or not. Any argument that the dependent in employment is not willing to provide sustenance/maintenance to other dependents or that the employed one is living separately is beyond the scope and ambit scheme and policy of the government and this Court sitting in its writ jurisdiction under Article 226 of the Constitution of India would not go into enquiring the correctness of the facts so pleaded before the Court.

48. In terms of the clarification offered by the department, on receipt of information that other siblings of the applicant are in employment, the competent authority would be required to objectively look into the nature of the employment and the resources being generated by the employed sibling from such employment. On an objective consideration where it is found that other sibling of the applicant is gainfully employed in such an



employment from which he/she is in a position and has capacity to provide sustenance/maintenance to the other dependents, the application for appointment on compassionate ground would not fit in the scheme in terms of the clarification at Annexure- "A" referred above but where it is found that the employment of the other sibling is of such a nature that it is not generating resources so as to make him able to provide both ends meet, for sustenance/maintenance to the other dependents of the deceased Government employee and despite gainful employment of one of the dependents but because of his poor income from such employment he is not in a position to provide two ends meet to the other dependents, therefore, they are on the verge of starvation, destitution and penury, the authorities of the State would be liable to consider the application of other dependent for appointment on compassionate ground. No other plea in any form whatsoever would be a ground to provide the benefit of the scheme of compassionate appointment.

*49. In my opinion the Division Bench judgment of this Court in the case of **Vishal Kumar** (supra) followed by learned Writ Court in the case of **Mahabir Paswan** (supra) and **Jay Prakash Choudhary** (supra) are laying down the correct law. In none of these writ applications, the petitioners have pleaded that their other siblings are in such an employment by which they are*



*unable to get sufficient money so as to provide the both ends meet to these petitioners, therefore, we find no error in the impugned order rejecting the application of the petitioner(s) on the ground that their other siblings are in employment. I would, therefore approve the judgment dated 22.8.2016 passed by the learned Single Judge in CWJC No.10236 of 2013 which has followed the judgment of the Hon'ble Division Bench in the case of **Vishal Kumar** (supra)."*

7. Further, the learned Co-ordinate Bench of this Court, vide judgment dated 19.11.2025, passed in C.W.J.C. No. 18148 of 2015 (Brajesh Kumar Jha vs. The State of Bihar & Ors.), relying upon the judgment of the Hon'ble Full Bench of this Court in the case of Niraj Kumar Mallick (supra), proceeded to reject the claim of the petitioner of that case. Similarly, vide judgment dated 22.09.2025, passed in **C.W.J.C. No. 9941 of 2016 (Shyam Kumar vs. The State of Bihar & Ors.)**, judgment dated 09.07.2025, passed in **C.W.J.C. No. 3206 of 2021 (Kamal Kumar vs. The State of Bihar & Ors.)** and judgment dated 03.03.2025, passed in **C.W.J.C. No. 2617 of 2019 (Tek Narayan Paswan vs. The State of Bihar & Ors.)**, different Co-ordinate Benches of this Court have proceeded to reject the claims of the petitioners based on paragraphs nos. 45,



47, 48 and 49 of the decision of the Hon'ble Full Bench of this Court in **Niraj Kumar Mallick** (supra).

8. Further, the compassionate appointment is given to the dependent of the deceased employee to tide over the immediate hardship caused due to the sudden death of the deceased employee. In the present case, the father of the petitioner died on 19.12.2009 and the present writ petition was filed in the year 2016 and now, in the year 2026, there is no justification in allowing the case of the petitioner for grant of compassionate appointment, since compassionate appointment is granted to the family members of the deceased employee to tide over the sudden immediate hardship and distress caused on account of death of the deceased employee.

9. Similarly, the Hon'ble Supreme Court of India in the case of **Jagdish Prasad Versus State of Bihar and Another**, reported in (1996) 1 SCC 301, in paragraph no. 3 has held that *“the very object of appointment of a dependent of the deceased employee who die in harness is to relieve unexpected immediate hardship and distress caused to the family by sudden demise of the earning member of the family. Since the death occurred way back in 1971, in which year the appellant was four years old, it cannot be said that he is entitled to be*



appointed after he attained majority long thereafter. In other words, if that contention is accepted, it amounts to another mode of recruitment of the dependent of a deceased government servant which cannot be encouraged, de hors the recruitment rules.”

10. Considering the settled proposition of law, this Court does not find any reason to interfere with the order impugned and, accordingly, the present writ petition is dismissed.

(Ritesh Kumar, J)

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